

STAFF REPORT

Swan Ranch Rail Park, 8th Filing
Summation

Zone Change

CASE NUMBER: UDC-13-00212

FILE CODE: SWAN-Z

PREPARED BY: Jim Flesher

MEETING DATES: **Planning Commission:** July 1, 2013

City Council: July 8, 2013 (referral to Public Service Committee)

Required documents submission:

All required documents have been submitted and reviewed by staff.

- Complete Application
- Zone Change Map
- Proposed Planned Unit Development (PUD) Regulating Plan document (Revised document submitted June 20, 2013.)

RECOMMENDATION: The Planning and Development Office recommends approval of the zone change and PUD.

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CASE NUMBER: UDC-13-00212 **FILE CODE:** SWAN-Z

PREPARED BY: Jim Flesher

SUBMITTED: May 24, 2013

PRE-APPLICATION: February 8, 2013

MEETING DATES: **Planning Commission:** July 1, 2013
City Council: July 8, 2013 (referral to Public Service Committee)

OWNER: Clear Creek Land Company LLC (307) 472-7275
Swan Ranch LLC
Granite Peak Development Management Inc.
c/o Dan Guerttman
PO Box 51568
Casper, WY 82605

Cheyenne-Laramie County Corp. for Economic Development
(Cheyenne Leads) (307) 638-6000
PO Box 1045
Cheyenne, WY 82003

Longhaul Enterprises (909) 948-3030
PO Box 3059
Rancho Cucamonga, CA 91729

APPLICANT /AGENT: Brad Emmons (307) 637-6017
% AVI, p.c.
1103 Old Town Lane, Suite 101
Cheyenne, WY 82009

PROJECT: Swan Ranch Rail Park, 8th Filing

WORK DESCRIPTION: City zoning for annexation of rail park extension

LOCATION:

1) Legal Description: Lot 1, Block 2, Swan Ranch Rail Park (SWRP), 1st Filing; Lots 1-4 and 6, Block 1, SWRP 4th Filing, all of SWRP 5th and 7th Filings and proposed 8th Filing, and a portion of Section 27, Township 13 North, Range 67 West of the 6th p.m., Laramie County, Wyoming

2) General Location: Northwest of the intersection of Clear Creek Parkway and Tundra Drive

3) Address: 5310 Clear Creek Pkwy (Longhaul Enterprises), plus vacant land

SIZE: Approximately 882 acres
CURRENT ZONING: LI and PUD (two separate) (County)
PROPOSED ZONING: LI and PUD (City)
EXISTING LAND USE: Partially platted industrial park
PROPOSED LAND USE: Industrial Park
SURROUNDING LAND USES:

DIRECTION	LAND USE(S)	ZONING	ANNEXATION STATUS
North	Vacant ranch land	LI	County
South	Swan Ranch Rail Park	PUD	County
East	Vacant land	CB	County
West	Vacant ranch land	PUD	County

SUMMARY:

An 882-acre portion of Swan Ranch Rail Park is concurrently proposed for annexation to the City and so needs City zoning. The property is currently partly zoned with two separate County Planned Unit Developments (PUDs) and partly Light Industrial (LI). The area zoned LI is changing slightly from extending south to the section line to now ending at the proposed Bridger Peak Road. The two County PUDs would be replaced with the attached one for this property. It is anticipated that future annexations would adopt this or a very similar PUD as well.

This PUD is a relatively simple modification of Heavy Industrial (HI) zoning that is applicable for this unique rail-served industrial park at the hub of two major rail lines – Union Pacific (UP) and Burlington Northern-Santa Fe (BNSF) – and near the interchange of Interstates 80 and 25 as well. The applicant and staff have worked together to produce the proposed PUD document. A summary of the differences from standard HI zoning is included in this report.

The zone change to City zoning is being processed concurrently with the annexation but will not take effect unless and until the annexation is complete.



Longhaul Enterprises under construction at 5310 Clear Creek Pkwy. Rail spur on left.



Looking north at Longhaul from Clear Creek Pkwy & Tundra Dr. Water pipe in foreground.



Looking southwest at drainage area south of Longhaul from Clear Creek Pkwy.

DESCRIPTION OF SITE AND SURROUNDINGS:

The subject property, west of and adjacent to Clear Creek Parkway, west of I-25, is vacant land except for Longhaul Enterprises, a piping manufacturer under construction at 5310 Clear Creek Parkway, and is surrounded on three sides by vacant land owned by Swan Ranch, LLC and Clear Creek Land Company. To the south is the previously developed portion of Swan Ranch Rail Park. It is anticipated that it will all eventually be annexed and zoned in the City.

Approximately one mile northeast of the subject property is the I-25/College Interchange and the nearby businesses: Flying J, Comfort Inn, McDonalds, and Ridge Equipment & Truck Repair, all of which have been annexed. Approximately one mile to the west of the property is the Dyno Nobel fertilizer plant on Otto Road outside the City.

The zone change includes the area of the annexation previously platted within the County, the unplatted parcel owned by Cheyenne LEADS, and the area being platted concurrently as Swan Ranch Rail Park, Eighth Filing. The area of the annexation north of the Eighth Filing boundary is and will remain LI.

ZONE CHANGE DATA:

The proposed PUD is essentially a modified Heavy Industrial, HI, zone district. Uses permitted “by right” include all HI uses plus railroad yards and maintenance buildings:

1. Storage yard or park
2. Office buildings
3. Automotive service stations and repair
4. Limited, moderate, and general industrial uses

5. Outdoor storage
6. Government and recycling facilities
7. Transportation facilities
8. Railroad yards and maintenance buildings

Uses that would require conditional use approval are the same as HI and include:

1. Outdoor sales
2. Industrial uses capable of producing significant byproducts discernible beyond the property lines
3. Salvage and junk yards

Setbacks would be 25 feet from property lines adjacent to streets rather than the 40 feet required in the standard HI district.

Landscaping requirements may be met by installing a “level 2” buffer, which essentially equates to one tree per 25 feet of street frontage plus three shrubs per 50 feet of street frontage, rather than the standard requirement of landscaping the remainder of area after the maximum lot coverage is subtracted (in this case 10 percent).

For a hypothetical example, a 10-acre square corner lot 660 feet by 660 feet ($660 \times 660 = 435,600$ sq. ft. = 10 acres) would require one acre (10 percent) of landscaped area under the current code for the HI zoning. Approximately 70 trees and up to 116 shrubs would be required. (The number of required shrubs could be reduced by installing drought-tolerant shrubs, grasses, and other landscape features.) Under the proposed PUD’s alternative compliance method, approximately 53 trees and 396 shrubs would be required.

If the same 10-acre square lot was an interior lot instead of a corner lot the required trees and shrubs under the PUD would be 26 and 198, respectively. If the lot instead was 200 feet wide at the street and 2,178 feet deep, the required trees and shrubs under the PUD would be only 8 and 60, respectively.

The alternative compliance method is optional. Either method requires groundcover such as native grasses in addition to trees and shrubs. Required landscape areas must be 75 percent live plant materials. The rest can be other materials such as rock or wood mulch.

Under the PUD no bike racks would be provided for bicycle parking.

Planned Unit Development (PUD) Review:

The PUD section of the UDC is intended to allow “flexibility and creativity in site and building design and location in accordance with an approved plan and specific ordinance, which shall be written in a manner as to prevent adverse impacts and protect public health, safety and welfare.” (UDC 5.6.2.a)

In reviewing, providing comments, and making recommendations and decisions on a proposed planned development, the staff, Planning Commission and City Council shall use the following criteria:

1. The application meets all threshold requirements for application of the PUD District or Form-based Code standards.

The minimum district area is two acres for undeveloped area (UDC 5.6.2.d.1)

2. The application presents clear and specific criteria on how the property and subsequent development will be reviewed, regulated and modified consistent with these regulations.

The proposed PUD is essentially a modified Heavy Industrial, HI, zone district. Proposed development will be reviewed in accordance with UDC 2.2.3, Site Plans.

3. The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan.

Fostering business and industrial development is a key principle of PlanCheyenne. According to PlanCheyenne:

Business and Industry development should be designed using the following principles:

1. Provide greater attention to design in high visibility locations, such as along interstates or on arterials.
2. Incorporate gateway features and landscaped areas in business and industrial areas.
3. Screen service areas and outdoor storage to the extent possible.
4. Provide pedestrian access from the main street through parking areas to the building.
5. Provide attractive fencing and low level lighting.

The PUD does not address these elements, some of which are addressed in the UDC. Outdoor storage and trash collection areas would be required to be screened from streets and property lines under the UDC. Pedestrian access is typically required during site plan review as well.

The Future Land Use Plan designations in PlanCheyenne include Mixed-Use Residential on the west side, Mixed-Use Employment in the middle, Mixed-Use Commercial at the northernmost tip, sections of Commercial on the east, and Agricultural/Rural in the area of the floodplain. PlanCheyenne is currently being updated and will likely reflect the types of uses being proposed for development in Swan Ranch.

4. The application reflects sound planning and urban design principles with respect to existing and potential future development in the vicinity, including consideration of current and future streets, open spaces, blocks and lots, and public utilities or facilities.

The primary concern here is extension of City services to the vicinity – police, fire, and sanitation, as well as plowing of snow and road maintenance. Otherwise, the development will likely resemble a typical industrial park. Some of the rail park is in place to the south in the County and future development will be similar to it. Please refer to the staff report for the Final Plat for discussion on extension of services to the development.

5. The application meets the purposes, intent, and all applicable standards in Article 4.

Please refer to the staff report for the Final Plat since these two processes are running concurrently.

6. Any phasing proposed in the application is clearly indicated and demonstrates a logical and well-planned development pattern. This may include consideration of amenities and public facilities of the subdivision within each phase compared to the anticipated timing or the likelihood of future phases being constructed as planned.

Development has been progressing north from the south, but state law requires annexations to progress from the existing city limits which are to the north. It is anticipated that eventually the entire development will be within the City. Certain roads within the subject property will be platted and constructed later. Traffic volumes may require future widening of certain roads,

which is the subject of a revised development agreement that also addresses certain deviations from standard road designs.

7. The impacts identified in specific studies or technical reports that were prepared or requested to be prepared in association with the application, and whether the findings and recommendations of these reports, or any modifications or conditions on approval of the application, can mitigate these impacts.

According to the drainage analysis submitted with the final plat:

The existing topography within the Swan Ranch 8th Filing generally slopes north-northwest culminating at a set of two (2) existing 42" RCP culverts....The Swan Ranch 8th Filing development will be designed and graded to convey stormwater runoff to the drainage channels constructed during the Berwick Drive and Wallick Road project which each run parallel to the adjacent road alignments.

A portion of the property is located within a 100-year floodplain and a "Letter of Map Revision" is being submitted to FEMA, the federal agency that regulates floodplain mapping.

Further refinement of drainage improvements will be determined during site plan processes as well.

As Swan Ranch Rail Park develops, there is some concern for the impacts on the I-25 interchanges at College and High Plains and how those impacts will be mitigated. Potential traffic volumes vary widely based on the projected uses, which are unknown at this time. Traffic volumes will be continually monitored as the project develops and WYDOT will continue to be included on plat, annexation, and other referrals.

8. The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas.

The subject property is part of the much larger Swan Ranch Rail Park, so compatibility is unlikely to be an issue. Swan Ranch generally transitions from commercial to light industrial to heavy industrial as one moves from I-25 toward the railroad. The commercial areas (outside of the subject property), being closer to the interstate, will serve more of a "gateway" function and block some of the view of industrial buildings from the interstate.

9. The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared with the suitability of the subject property for development according to the standards and uses of proposed zoning district.

Since the property is annexing to the City it needs to have City zoning in place prior to developing. The existing County zoning is unsuitable for development in the City.

10. The ability of the application to support the Intent and Applicability statements of the proposed zoning district, and achieve the Design Objectives of any specific standards.

Part of the zone change area is proposed for LI zoning which has the following statement of intent in the UDC:

The LI district is intended for environmentally controlled manufacturing or intensive employment uses that may have accessory commercial, service or office uses, but which can not readily fit into other general business or mixed-use areas due to the nature or intensity of

operations. The uses and building and site designs associated with uses in this district produce little or no impacts beyond the property lines.

Uses within this portion of the development will be required to meet the LI zoning requirements.

PUDs generally are intended to provide more flexibility of zoning regulations in exchange for amenities. In the case of Swan Ranch the amenity is a unique rail park development providing jobs to area residents.

11. The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options in the event that any specific development proposed in association with the application is not executed after approval.

The subject property needs City zoning if it is to be annexed. Rather than PUD, the property could theoretically be zoned a mix of LI and HI, however, this would lead to less consistent setbacks and may require ongoing zone changes in the future as the future users of specific properties are determined.

12. Whether the planning and urban design concepts, and any proposed deviation from or alternative to otherwise applicable development standards, result in clear public benefits, as opposed to benefits to existing or future land owners in the development.

Benefits to the public are primarily in the form of job creation and tax revenue. Deviations from landscaping requirements may result in less landscaping.

13. The review and recommendations of other reviewing bodies.

No comments from other reviewing bodies were received on the zone change. Engineering comments were addressed with a revised PUD document. Please see the Final Plat report for outside agency comments on the plat.

14. Whether the application will harm the public health, safety, or general welfare.

As with any Heavy Industrial development, the permitted uses include some that may involve hazardous materials. Those hazards are regulated in part by the U.S. Environmental Protection Agency and the Wyoming Department of Environmental Quality. The City's adopted fire and building codes are intended to limit hazards as well. The nearest residential subdivision is the unincorporated Southcrest Heights, 2nd Filing, located approximately 3,000 feet east, but it is largely unbuilt due to the lack of water and sewer service in the area. Denying the development would likely lead to its development in the County. Such a result would not ameliorate any potential hazards to public health.

The subject property is located beyond the four-minute radius of the nearest City fire station and emergency response times may be twice the recommended limit. This concern would be addressed by construction, equipping, and staffing a new fire station in the vicinity. Please see the staff report for the Final Plat for more information.

15. The application is compatible with the character of the surrounding area in terms of building scale, building form, landscape, and site design.

The proposed PUD is very similar to existing Heavy Industrial, HI, zoning and is compatible with the surrounding rail park.

REVIEWING AGENCY AND REVIEWERS COMMENTS:

Engineering, General: This proposed PUD needs to be put into the proper form before it is reviewed. (Note: This comment was addressed with a revised PUD document.)

Engineering, Traffic: The PUD needs to be incorporated as part of the Development Agreement for Swan Ranch including the established development standards, otherwise the provisions of the Uniform development Code (UDC) for roadway classification, right-of-way width and street design section shall apply. (Note: The revised development agreement applies to areas beyond the PUD and will address certain road design standards. Others will be as depicted in the UDC.)

AGENCIES RESPONDING WITHOUT COMMENT: City Attorney, Drainage Engineering, GIS/Addressing/Eng. Tech, MPO.

AGENCIES NOT RESPONDING: None.

OTHER COMMENTS RECEIVED: None.

Encl: Zone Change Map
Proposed PUD Document
Reference Map

cc: Agent
Owner
File